



KeyCite Yellow Flag
Proposed Legislation

Vernon's Texas Statutes and Codes Annotated
Property Code (Refs & Annos)
Title 8. Landlord and Tenant (Refs & Annos)
Chapter 92. Residential Tenancies (Refs & Annos)
Subchapter H. Retaliation (Refs & Annos)

V.T.C.A., Property Code § 92.331

§ 92.331. Retaliation by Landlord

Currentness

(a) A landlord may not retaliate against a tenant by taking an action described by Subsection (b) because the tenant:

(1) in good faith exercises or attempts to exercise against a landlord a right or remedy granted to the tenant by lease, municipal ordinance, or federal or state statute;

(2) gives a landlord a notice to repair or exercise a remedy under this chapter;

(3) complains to a governmental entity responsible for enforcing building or housing codes, a public utility, or a civic or nonprofit agency, and the tenant:

(A) claims a building or housing code violation or utility problem; and

(B) believes in good faith that the complaint is valid and that the violation or problem occurred; or

(4) establishes, attempts to establish, or participates in a tenant organization.

(b) A landlord may not, within six months after the date of the tenant's action under Subsection (a), retaliate against the tenant by:

- (1) filing an eviction proceeding, except for the grounds stated by [Section 92.332](#);
- (2) depriving the tenant of the use of the premises, except for reasons authorized by law;
- (3) decreasing services to the tenant;
- (4) increasing the tenant's rent or terminating the tenant's lease; or
- (5) engaging, in bad faith, in a course of conduct that materially interferes with the tenant's rights under the tenant's lease.

Credits

Acts 1983, 68th Leg., p. 3637, ch. 576, § 1, eff. Jan. 1, 1984. Amended by [Acts 1989, 71st Leg., ch. 650, § 9, eff. Aug. 28, 1989](#); [Acts 1993, 73rd Leg., ch. 48, § 16, eff. Sept. 1, 1993](#). Redesignated from [V.T.C.A., Property Code § 92.057\(a\)](#) and amended by [Acts 1995, 74th Leg., ch. 869, § 5, eff. Jan. 1, 1996](#). Amended by [Acts 2013, 83rd Leg., ch. 588 \(S.B. 630\), § 2, eff. Jan. 1, 2014](#).

[Notes of Decisions \(5\)](#)

O'CONNOR'S NOTES

Source: TRCS [art. 5236f, §7](#).

O'CONNOR'S CROSS REFERENCES

See also [Prop. Code §§92.334, 92.335, 93.011, 94.251, 94.255](#); [O'Connor's Texas COA](#), “Landlord’s retaliatory action,” [ch. 16-G, §2.3](#).

O'CONNOR'S ANNOTATIONS

[Sims v. Century Kiest Apts.](#), 567 S.W.2d 526, 532 (Tex.App.--Dallas 1978, no writ). “[W]e hold that retaliatory eviction is a legal wrong for which an action for damages will lie.”

V. T. C. A., Property Code § 92.331, TX PROPERTY § 92.331

Current through the end of the 2025 Regular and Second Called Sessions of the 89th Legislature.

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